

remains that a *modus operandi* between president, PM and parliament can be found – only such an agreement would complete the transition of Georgia from a semi-democracy to a full democracy, with wider implications for states like Azerbaijan, Armenia or Ukraine, which are either still stuck in or have reverted to a semi-authoritarian mode.

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# The 2013 presidential and legislative elections in Chile



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On November 17, 2013 Chile held its sixth presidential election since the return of democracy in 1989. Nine candidates ran for office. Since none of them obtained the absolute majority of the vote required to win in the first round, the top two vote getters moved on to a second round of voting. On December 15, 2013 Michelle Bachelet (of center left wing coalition *Nueva Mayoría*) and Evelyn Matthei (of center right wing coalition *Alianza*) ran against each other in a runoff election. Bachelet was elected with 62 percent of the valid votes.

## 1. Background

The 2013 Chilean presidential election was the sixth since the return of democracy in 1989. The first four elections (1989, 1993, 1999 and 2005) were won by the *Nueva Mayoría* coalition, made up by center-left Christian Democrats and Socialists. The fifth election (2009) was won by the *Alianza* coalition, made up of two right-wing parties. At the moment of the election, the *Nueva Mayoría* had already governed a combined 20 years while the incumbent *Alianza* was completing its first four-year term. In Chile, the President is elected by absolute majority vote through a two-round system to serve a 4-year term.

Concurrently with the presidential election, Chile held its seventh legislative election since the transition. In each

of the previous elections (1989, 1993, 1997, 2001, 2005 and 2009) the *Nueva Mayoría* and the *Alianza* took the majority of votes and seats. Between 1990 and 2014 only 15 third-party candidates and independents had been elected to serve in the two-chamber congress. In Chile, senators and deputies are elected through an open-list proportional representation system with a fixed district magnitude of two. Senators serve for eight-year terms and deputies serve for four-year-terms.

Two additional events unfolded concurrent to the presidential and legislative elections. It was the first time an automatic registration and voluntary voting electoral system were used for a major election. The system had only been used in the 2012 local elections. Previously, registration was voluntary but voting was compulsory for those who registered. It was also the first time that regional council members were directly elected. They were elected to serve as members of the regional legislatures for 2014–2016. In the past, city council member assemblies had directly nominated them.

## 2. Campaign and candidates

The spotlight of the election was on ex President Michelle Bachelet. After leaving the presidency in 2010, she was appointed Executive Director of UN Women, a United Nations entity working for the empowerment of women. During her three-year post she maintained extraordinarily high approval ratings despite not participating in local

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politics. In March 2013, she returned to accept the nomination to represent the Socialist Party in the *Nueva Mayoría* primary elections. In the primaries, Bachelet obtained 73%, eliminating fellow coalition members José Antonio Gómez and Claudio Orrego and independent Andrés Velasco. In July 2013, she registered as the official coalition candidate.

The process the *Alianza* undertook to nominate their candidate differed from their usual method. For the first time they decided to hold coalition primaries. In November 2012, former cabinet ministers Andrés Allamand and Laurence Golborne were set to faceoff. Yet, after a six-month campaign, party elites decided to replace Golborne with former senator Pablo Longueira. In the primaries, Longueira obtained 51% of the vote, eliminating Allamand. Two weeks after, Longueira resigned because of health issues. Coalition elites decided to replace him with former senator Evelyn Matthei. In July 2013, she registered as the official coalition candidate.

In addition to Bachelet and Matthei, seven other candidates registered for the election. Among them were former 2009 presidential candidate Marco Enríquez-Ominami and academic turned TV personality Franco Parisi. While none of them fit neatly into mainstream politics the former can be considered direct competition for the *Nueva Mayoría*, and the latter can be considered direct competition for the *Alianza*. The others were third party candidates Marcel Claude, Alfredo Sfeir, Roxana Miranda, Ricardo Israel and independent candidate Alfredo Jocelyn-Holt. They all campaigned on single issues.

Fig. 1 shows pre-election polls conducted between August 2013 and November 2013. Polls show that Bachelet was significantly more popular than any of the candidates. In the last poll released by prestigious think tank CEP before the election, Bachelet topped Matthei by an average of 50 percent to 20 percent. Bachelet's margin of favoritism can be understood as a result of the high approval ratings she obtained towards the end of her administration. But it can also be understood as a result of the dramatic nomination process the *Alianza* went through to nominate its own candidate.

Fig. 1 also shows that there were at least three tiers of candidates. In the first tier were the most competitive candidates – Bachelet and Matthei – fighting to win in the first round and to force the runoff respectively. This was not a surprise, since both the *Nueva Mayoría* and the *Alianza* were the largest coalitions in the country. In the second tier were runner-ups Enríquez-Ominami and Parisi, each of them averaging around 10 percent of the vote. In the third tier were the third-party candidates Claude, Sfeir, Miranda, Israel and independent Jocelyn-Holt, none of them averaging more than 5 percent of the vote.

Bachelet's margin of favoritism in the polls can be understood as a function of her synchronization with citizen demands. In her presidential program, she promised to conduct constitutional reform, educational reform and tax reform. All three of them were issues deemed as urgent matters in the polls. Matthei, on the other hand, was significantly less popular than Bachelet precisely because of her opposition to all three reforms. She opposed overhauling the constitution, rejected reform of the educational system, and deemed proposed macroeconomic changes dangerous.

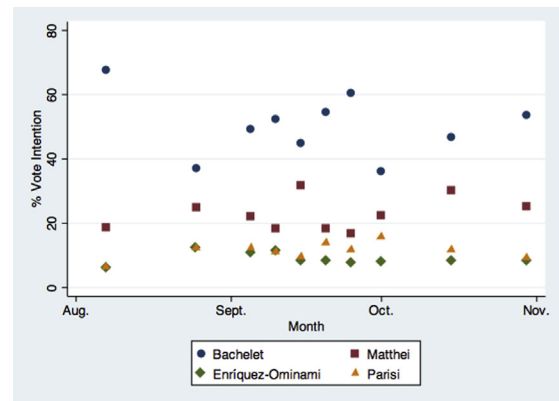


Fig. 1. Pre-Election Polls. Note: Only candidates those averaged more than 5% are displayed. Source: CEP, Conecta, El Mercurio-Opina, ICHEM-UA, Ipsos, La Segunda-UDD, ICSO-UDP.

In the second tier, Enríquez-Ominami presented himself as an established politician, after running as an outsider in 2009. He formed his own political party, and registered as a mainstream presidential candidate. He campaigned on center left ideas, such as a new constitution, the renationalization of the copper industry and minority rights. Parisi, on the other hand, took the outsider role. After entering politics in mid 2011, he took the role of the underdog in the election. He campaigned on a personal level, often using anti-system rhetoric to attract the support of young and new voters.

The other candidates can be classified into two groups, judging by their presidential agendas and campaign strategies. One group (comprised of Claude, Sfeir and Miranda) identified with traditional left wing ideologies. They all supported the drafting of a new Constitution, a change to the legislative electoral system and the legalization of marijuana among other issues. The other group (comprised of Israel and Jocelyn-Holt) identified with more specific niches. While Israel appealed to regional and Christian voters, Jocelyn-Holt appealed to young and apolitical voters.

### 3. Results

Table 1 shows the results of the election. It confirms the three tiers suggested by public opinion polls. The two major candidates took the majority of votes. Bachelet obtained 46.7 percent, and Matthei obtained 25.03 percent. In the second tier, Enríquez-Ominami and Parisi practically tied, with 10.99 percent of the vote for the former and 10.11 percent of the vote for the latter. In the third tier, Claude came in fifth with 2.81 percent of the vote, followed by Sfeir with 2.35 percent of the vote, Miranda with 1.24 percent of the vote, Israel with 0.57 percent of the vote, and Jocelyn Holt with a record low 0.19 percent of the vote.

Table 1 also shows results for the second round of voting. It shows that Bachelet obtained 62.16 percent of the vote and Matthei obtained 37.83 percent of the vote. While Bachelet's percentage of the vote is the highest any president has obtained in a second round since transition, it is also the lowest number of votes for the winner of a second round. Her percentage of votes was higher than the 53.50 she obtained in 2005, but her number of votes was lower than the 3.7

**Table 1**

Results of the presidential election.

|                        | First round<br>(November 17) |            | Second round<br>(December 15) |            |
|------------------------|------------------------------|------------|-------------------------------|------------|
|                        | Votes                        | Percentage | Votes                         | Percentage |
| Michelle Bachelet      | 3,075,839                    | 46.70      | 3,470,055                     | 62.16      |
| Evelyn Matthei         | 1,648,481                    | 25.03      | 2,111,830                     | 37.83      |
| Marco Enríquez-Ominami | 723,542                      | 10.99      |                               |            |
| Franco Parisi          | 666,015                      | 10.11      |                               |            |
| Marcel Claude          | 185,072                      | 2.81       |                               |            |
| Alfredo Sfeir          | 154,648                      | 2.35       |                               |            |
| Roxana Miranda         | 81,873                       | 1.24       |                               |            |
| Ricardo Israel         | 37,774                       | 0.57       |                               |            |
| Tomás Jocelyn-Holt     | 12,594                       | 0.19       |                               |            |
| Total                  | 6,585,808                    |            | 5,581,885                     |            |

Source: Servicio Electoral de Chile (<http://www.servel.cl>).

million she also obtained in 2005. Matthei received fewer votes (both numerically and as a percentage) than any other candidate in the second round since the transition.

Since polls seemed to consistently indicate that Bachelet would be elected to the presidency, the spotlight of the concurrent election shifted to the legislative battle. As soon as Bachelet drafted her presidential program mainstream media began speculating on the possibility she would be unable to obtain a legislative majority large enough to conduct the reforms she propositioned: constitutional reform (for which she would require two-thirds of congress), educational reform (for which she would require four-sevenths of congress) and tax reform (for which she would require an absolute majority of congress).

The above became a salient issue in the campaign, since a second Bachelet administration without a significant legislative majority was framed as redundant. Without two-thirds of congress (26 senators and 80 deputies) she would not be able to draft a new constitution and address what Chileans deemed to be the most important legacy of the dictatorship. Without four-sevenths of congress (23 senators and 72 deputies) she would not be able to conduct an educational reform and meet student demands. Without an absolute majority of congress (20 senators and 69 deputies) she would not be able to finance any major government programs.

The result of the legislative election quickly settled speculations. Table 2 shows that *Nueva Mayoría* obtained 21 seats in the Senate and 67 seats in the Chamber of Deputies. It also shows that *Alianza* obtained 7 seats in the Senate and 49 seats in the Chamber of Deputies. (Considering that only half of the seats in the Senate were up for election, and that the remaining 18 seats were equally divided between the two largest coalitions, the final composition of the senate for 2014–2018 resulted in 21 senators for the *Nueva Mayoría*, 16 senators for the *Alianza*, and 1 independent senator).

In comparison to the 2010–2014 cohort, *Nueva Mayoría* made a significant electoral gain. The center left wing coalition won one seat in the Senate and 10 seats in the Chamber

**Table 2**

Results of the legislative election.

|                             | Chamber of deputies |       | Senate    |       |
|-----------------------------|---------------------|-------|-----------|-------|
|                             | Votes               | Seats | Votes     | Seats |
| Nueva Mayoría               | 2,962,056           | 67    | 2,279,657 | 12    |
| Alianza                     | 2,247,442           | 49    | 1,710,069 | 7     |
| Si tú quieres, Chile cambia | 338,122             | 1     | 110,259   | 0     |
| Humanistas                  | 209,106             | 0     | 156,244   | 0     |
| Nueva Constitución          | 172,985             | 0     | 176,141   | 0     |
| PRI                         | 72,356              | 0     | –         | –     |
| Independents                | 206,381             | 3     | 68,626    | 1     |
| Total                       | 6,212,448           | 120   | 4,500,996 | 20    |

Source: Servicio Electoral de Chile (<http://www.servel.cl>).

of deputies. It made its largest increase in seats from one election to the next since the transition to democracy. On the other hand, *Alianza* lost one seat in the Senate and 9 seats in the Chamber of Deputies. The right wing coalition suffered its largest defeat since 1989. It is important to note that independent candidates saw a record high number of candidates get elected. In total, one independent senator and three independent deputies were elected.

#### 4. Outcomes and outlook

The result of the concurrent presidential and legislative election suggests that Bachelet will have to negotiate in order to keep her campaign promises. Even though she obtained a record high percentage of votes in the presidential election, her coalition was not able to secure a majority large enough to meet the extraordinarily high quorums. She will have to negotiate with *Alianza* legislators if she wants to pursue a constitutional reform, and with independent legislators if she wants to pursue an educational reform. She will only have enough legislative support (absolute majority in both chambers) to conduct a tax reform.

Bachelet's administration will orbit around her legitimacy. The debut of the automatic registration and voluntary voting electoral system coincided with the lowest turnout since the return of democracy. The low turnout seems to have somewhat deepened the pre-existing crisis of representation. Since only 51 percent of eligible voters voted, the opposition will likely argue that most Chileans do not support Bachelet's reforms. Thus, even if negotiations with the *Alianza* or independent legislators are successful, the road to success will surely be more turbulent than in her first government.

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